

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No.4200 of 2008.

Kali Pada Mondal.

..... Petitioner.

Vs.

Pankaj Kumer Mondal and others.

..... Opposite-Parties.

No one appears.

..... for the Petitioner.

Mrs. Preyanka Mohalder, Advocate.

..... for the Opposite-Party Nos.1-3.

Heard on:08.01.2023 and
Judgment on:09.01.2023.

This Rule was issued calling upon the opposite party Nos. 01-03 to show cause as to why the impugned judgment and order dated 27.03.2008 passed by the learned Joint District Judge, 2nd Court, Khulna (In Charge) in Miscellaneous Appeal No. 02 of 2002 disallowing the appeal and affirming the judgment and order dated 17.11.2001 passed by the learned Senior Assistant Judge, Dumuria, Khulna in Miscellaneous Case No. 33 of 1995 allowing the pre-emption should not be set aside and/or such other or further order or orders as to this Court may seem fit and proper.

The facts leading to the issuance of the Rule in a nutshell can be stated thus, the present opposite party Nos.1-3 as pre-emptor-respondent instituted the original Pre-emption Miscellaneous Case No. 33 of 1995 in the Court of learned Senior Assistant Judge, Khulna under Section 96 of the State

Acquisition and Tenancy Act, 1950 against the present petitioner-appellant-pre-emptee (purchaser) contending, inter alia, that the case jote appertaining to Mouza Shibchar under Dumuria Police Station of District Khulna corresponding to S.A. Khatian No. 58 total 8.54 acres of land including the suit schedule land measuring 0.38 acres land originally belonged to Doibocharan Sarder, Pachu Mondal, Mohadeb Mondal and Rakhal Mondal alias Ram Lal Mondal. Thereafter the S.A. Record was correctly prepared and published by Mohadeb Mondal and he died leaving behind 3(three) sons namely Modhu Sudan, Anil Krishna and Bidhan Mondal. They are transferred 1.45 acres of land in the suit jote to the pre-emptors dated 11.03.1990 vide registered deed. The pre-emptors are co-sharer by purchase in the suit jote. On the other hand the present petitioner-appellant pre-emptee (purchaser) is a stranger. Subsequently the opposite party Nos. 4 and 5 pre-emptee (sellers) are transferred .35 acres of land in the suit jote to the present petitioner-appellant pre-emptee (purchaser) namely Kalipada Mondal without any notice dated 27.11.1994 vide registered deed No. 7703. The present opposite party Nos. 1-3 as pre-emptor came to know about the transfer in question and the pre-emptor-petitioner-respondent-opposite party Nos. 1-3 knowing about the transfer on 19.04.1995 after getting certified copy of the said deed and the notice was not served the aforesaid transfer upon the pre-emptor-petitioner-respondent-opposite-party Nos.01-03 namely Pankaj Kumar Mondal, Sunil Kumar Mondal as to deprive the pre-emptor-petitioner's right to pre-emption and the case land is very much necessary to the pre-emptors and as such the pre-emptor-petitioners filed instance case

for praying pre-emption under Sections 96 of the State Acquisition and Tenancy Act, 1950. Hence the present case.

The present petitioner-appellant-pre-emptee-opposite party No.01 contested the suit by filing the written objection denying all the material allegations contending, inter alia, that the preemptors are the benamdar of the deed of his father on 11.03.1990 that the preemptors had no land in the case jote, on the other hand, the opposite party No. 7 has owned and possessed of land in the case jote and the opposite party No. 1 and his brothers are cultivating the land and the pre-emptor has got above 60's bighas of land although the case land was transferred at a price of Tk. 30,000/- but in the deed of the land price was mentioned as Tk. 15000/- and knowing about the lesser price of the land. Then the preemptors filed the instant case out of greed and as such the application for pre-emption is liable to be rejected.

The learned trial Court during trial of the original case after taking evidences from the sides of the respective parties and the trial Court examined P.W 1 to P.W.2 and O.P.W.1 to O.P.W.4 and by the judgment and order dated 17.11.2001 allowing the pre-emption Miscellaneous case.

Being aggrieved the pre-emptee (purchaser) the opposite party No. 1 filed a Miscellaneous Appeal No. 02 of 2002 before the Court of learned District Judge, Khulna which was transmitted to the learned Joint District Judge, Khulna for hearing and disposal and after hearing the learned Joint District Judge, 2nd Court, Khulna (In Charge) by the impugned judgment and

order dated 27.03.2008 disallowed the Miscellaneous Appeal affirming the judgment and order passed by the trial Court.

Being aggrieved by and dissatisfied with the impugned judgment and order the present petitioner-appellant pre-emptee (purchaser) opposite party No. 1 preferred in Civil Revision No.4200 of 2008 under Section 115(1) of the Code of Civil Procedure before this court and obtained the present Rule.

During hearing of the Rule the learned Advocate of the petitioner none appear and the learned Advocate on behalf of the opposite party Nos. 1 to 3 appeared before this court. It is now settled by our Apex Court decision in the case of Safar Uddin Vs. Fazlul Huq, reported in 49 DLR(AD) 151 that a revision can be disposed of on merit in the absence of either party or both the parties. In such circumstances the case is taken up for hearing on merit.

This revisional application filed by the present petitioner-appellant-pre-emptee (purchaser) and on the grounds is that the Court below having no discussed the evidences of the parties for ascertaining as to whether the pre-emptors are entitled to pre-empt the case land rather mentioned some sentences of the deposition of pre-emptee petitioner on the point of development cost thereby committed an error of law resulting in an error in the decision occasioning failure of justice. Another grounds is that since the O.P.W. 3 and O.P.W. 4 having stated in their deposition that the father of the pre-emptors and their mother have got above 60/70 bighas of land. The courts below did not consider the OP.W.3 and OP.W.4 the evidences on record and as such the courts below committed an error of law resulting in

an error in the decision occasioning failure of justice which is liable to be set aside.

And also further grounds is that since the pre-emptors and their father are living in an undivided family and their family purchased 1.45 acres of land by his own fund and after purchasing the said land their father constructed building thereon and since the pre-emptors had no source of income to purchase the aforesaid land rather, the same has been purchased by their father but the learned courts below above facts and circumstances did not consider the material on record and without applying his judicial mind and without considering the evidences on record and as such the Courts below committed an error of law resulting in an error in the decision occasioning failure of justice in allowing the pre-emption case on the basis of misreading of the evidences and non consideration of the real issues which is liable to be set aside for ends of justice.

Mrs. Preyanka Mohalder, The learned Advocate appearing on behalf of the opposite party Nos. 1-3 submits that both the Courts below in their observations and findings that the opposite party Nos. 1-3 were co-sharer by purchase. But the pre-emptee-opposite party-appellant-petitioner was not a co-sharer but he was a stranger in the case jote.

The learned Advocate further submits that the learned trial Court as well as the appellate Court below is rightly allowing the Pre-emption Miscellaneous Case and its subsequent rightly evidence on records in its true perspective, decided on merit of the original case in favour of the present

opposite parties-respondent-pre-emptors and there is no illegality or infirmity in the impugned judgment and order and after proper assessment of evidences on record, the learned Appellate Court disallowing the Appeal affirming the judgment and order passed by the trial Court allowing the Pre-emption Miscellaneous Case. She lastly submits that the Rule is liable to be discharged for ends of justice. The learned Advocate referred to the case of Rafiqul Alam Vs. Rohimuddin Sarkar and others, reported in 34 DLR(1982) 180 and another decision cited in the case of Md. Rajab Ali Sheikh and another Vs. Md. Redoyanul Islam and others, reported in 14 BLT 357.

In order to appreciate the submission advanced from the side of the learned Counsel for the opposite-party No.01-03 having gone through the impugned judgment and order dated 27.03.2008 passed by the appellate Court below as well as the judgment and order passed by the trial Court dated 17.11.2001 and the evidence led from the sides of the respective parties, both oral and documentary, it transpires that, admittedly the present opposite parties-respondent-pre-emptors are co-sharer by purchase in the suit jote but the present petitioner-appellant pre-emptee is not a co-sharer. It appears from the pleadings of the parties that the present petitioner in his written objection clearly stated that he purchased the land an amount of Tk.30,000/-(thirty thousand) but an amount of Tk.15,000/-(fifteen thousand) was written in the deed of purchase. The learned trial Court did not consider the said amount.

Both the parties to the case to substantiate their respective pleadings case have adduced witnesses.

P.W.1 is the pre-emptor-petitioner Pankaj Kumar Mondal. He deposed that Doibocharan Sarder, Pachu Mondal, Mohadeb Mondal and Rakhal Mondal alias Ram Lal Mondal were owned and possessed in the suit land and that Mohadeb Mondal while in possession and enjoying his share in the suit jote, he died leaving behind 3(three) sons namely, Modhu Sudhon, Anil Krishna and Bidhan Mondal and they have been transferred 1.45 acres of land to the pre-emptors by registered deed dated 11.03.1990 and he is a co-sharer by purchase in the Suit land. That Pachu Mondal died leaving 3(three) sons namely, Shatish, Atul and Bhupendra. That Shatish also died leaving behind opposite party Nos. 02 and 17. Atul Mondal sold .20 acres of land on 15.01.1985 to the opposite party No. 03. Thereafter, the opposite party Nos. 02 and 03 sold the .35 acres of land on 27.11.1994 to the opposite party No. 01 preemptee (purchaser). So the opposite party No. 01 was not co-sharer in the case jote. Thereafter, on 27.11.1994 the petitioner-pre-emptor came to know about the transfer in the schedule land then he prayed for pre-emption and the P.W. 2 Niranjana Bacher supported the petitioner's case.

O.P.W. 1 Kalipada Mondal in his testimony stated that S.A. recorded tenant Mohadeb Mondal and his share .50 acres of land sold to the opposite party No.7 on 11.03.1990 and in the same date father of the opposite party Nos.01-03 purchased the suit schedule land and others shares land of the benamder in favour of the opposite party Nos.01-03. Thereafter, opposite party No.1 purchased the land on 27.11.1994 from the opposite party Nos. 2 and 3. Although, the petitioner-pre-emptee has purchased the suit land in

the price of Tk.30,000/- but he has written in the deed of purchase amount of Tk. 15,000/- (Fifteen thousand). The pre-emptee as present petitioner was spend more than Tk. 10,000/-(ten thousand) to level develop the land. In the month of April 1996 the pre-emptee has been spend Tk. 20,000 for making cut the soil and made of pond then he started farming fish. So, the pre-emptor could not get any pre-emption and as such the pre-emption case is liable to be rejected. The O.P.W.2 and O.P.W. 3 supported the opposite parties case.

Analyzing the case records and the evidences from the sides of the respective parties, I have the reason to draw conclusion that the opposite parties-respondent-pre-emptors are co-sharer by purchase in the case jote and the present petitioner-appellant pre-emptee No.01 did not co-sharer and the present petitioner's claimed that he purchased the land by co-sharer of benamder and the petitioner did not file a proper value in the instant case. But the Courts below in their observation and findings concurrently held that the opposite parties-respondent-preemptors were co-sharer in the case jote. The present petitioner-appellant-pre-emptee No.01 is not a co-sharer but he is a stranger. Therefore it is crystal clear that the present opposite-party-pre-emptors were co-sharer by purchase and the present petitioner-pre-emptee No.01 is a stranger. Under the ambit of Section 96 of the State Acquisition and Tenancy Act, 1950 (XXVIII of 1951), it is a decided matter in our judicature that the co-sharer by purchase can claim pre-emption (before amendment of Section 96). Apart from this, the contents of the deed will get priority until and unless it is rebutted by sufficient convincing credible

evidence and documents, with that of the oral evidence adduced from the sides of the parties. It is the incumbent duty upon the opposite parties-respondent-pre-emptors to prove by sufficient tenable, credible evidence. Therefore, the present opposite parties-respondent-pre-emptors have been able to prove their case by supporting evidences and documents but the present petitioner-appellant-pre-employee-opposite party could not prove his case rather, the trial Court as well as appellate Court below has rightly and correctly passed by the judgment and order relying upon the deposition of P.W.1 and P.W.2 and having assessed the entire evidences on record in its proper perspective. The submissions of the learned Advocate for the opposite-parties got force which can be relied upon the decision of the case of Rafiqul Alam Vs. Rahimuddin Sarkar and another reported in 34 DLR (1982) 180 wherein it has been held that:

“Co-Sharer by inheritance has the highest priority to claim pre-emption in any holding.

Clause (a) of sub-section (5) of section 96 of the State Acquisition and Tenancy Act says that if a co-sharer tenant whose interest has accrued by inheritance and a co-sharer tenant whose interest has accrued by purchase and a tenant holding land contiguous to the land transferred apply for pre-emption, such applicant shall have the prior right to purchase in the order in which they have been mentioned hereinabove. From the aforesaid provision of law it clearly appears that the

legislature has fixed the priority between co-sharers by inheritance and purchase and contiguous owners and that a co-sharer by inheritance has the highest priority to claim pre-emption in any holding in question.”

And another case of 14 BLT 357 wherein it has been held that:

“The intention of the legislature according to provisions of section 96 of the State Acquisition and Tenancy Act, 1950 is very clear that to shut the door against all strangers, who shall encroach upon the ownership and possession of the real co-sharers and whereupon the real co-sharers can remain in enjoyment of their property and others cannot interfere with their right and possession.”

In the instant case going through the evidences on record I have come arrived in decision that the present petitioner-appellant-pre-emptee No.01 has failed to discharge his onus of proof of the case and accordingly, the Courts below concurrently in their observation and findings on the basis of evidences on records, rightly held that the present petitioner-appellant-pre-emptee was not a co-sharer in the suit schedule land. On the other hand the present opposite parties-respondent-pre-emptors were co-sharer in the suit schedule land and as such, it is a case of pre-emptable under the ambit of Section 96 of the State Acquisition and Tenancy Act, 1950.

Having regard to the facts and circumstances and the discussions referred to above, I am constrained to hold such a view that in the impugned judgment and order there is no illegality or infirmity or misreading or non reading of evidence or non consideration of material facts resulting in an error in the decision occasioning failure of justice, by which it cannot be interfered with.

In the result, the Rule is discharged. The impugned judgment and order dated 27.03.2008 passed by the learned Joint District Judge, 2nd Court, Khulna (In Charge) in Miscellaneous Appeal No.02 of 2002 disallowing the appeal and thereby affirming the judgment and order dated 17.11.2001 passed by the learned Senior Assistant Judge, Dumuria, Khulna in Miscellaneous Case No. 33 of 1995 allowing the pre-emption is hereby affirmed.

However, there will be no order as to costs.

The earlier order of stay granted by this court is hereby recalled and vacated.

Communicate the judgment and order at once and send back to the lower Court's records immediately.